

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR MAY 14, 2026, AT 8:30 A.M.

Accordingly, defendants' motion for leave to file a cross-complaint is granted. Defendants shall file and serve the cross-complaint attached to the supplemental declaration of Cynthia Lawrence on or before **May 21, 2026**.

Trial Setting Conference

Appearances of the parties are required. Trial counsel are to personally appear. Remote appearance is not authorized. Trial counsel shall bring their respective trial calendars and schedules.

The parties are ordered to meet and confer in good faith prior to the hearing, which includes acting within the spirit and meaning of the California Attorney Guidelines of Civility and Professionalism, to select mutually agreed upon trial dates.

6. S-CV-0051706 NERSESYAN, OVSEP v. JUERN, JEREMY S. M.D.

The motion for summary judgment is continued to **May 21, 2026, at 8:30 a.m. in Department 3**.

7. S-CV-0051886 CHURCHMAN, JAMES v. FCA US

Plaintiff's Motion to Substitute Trustee Jeffrey R. Churchman in Place of Deceased Plaintiff, James Churchman

Plaintiff's motion to substitute trustee Jeffrey R. Churchman in place of deceased plaintiff James Churchman is granted. (Code Civ. Proc., §§ 377.30, 377.31, 377.32.) Jeffrey R. Churchman, surviving son and trustee of plaintiff, James Churchman, is hereby substituted in place of plaintiff James Churchman.

8. S-CV-0052434 GALVAN, MARIA v. LAWTON CONSTRUCTION

Plaintiff's Motion for Preliminary Approval of Class Action Settlement

The unopposed motion is granted. The court has broad discretion in determining whether a class action settlement is (1) fair and reasonable, (2) the class notice is adequate, and (3) certification of the class is proper. (*In re Cellphone Fee Termination Cases* (2010) 186 Cal.App.4th 1380, 1389.) Further, the court reviews the moving papers along with the entirety of the court file to determine that the settlement is genuine, meaningful, and consistent with the underlying purposes of the PAGA-related statute. (Labor Code section 2699(s); *O'Connor v. Uber*

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Technologies, Inc. (N.D. Cal. 2016) 201 F.Supp.3d 1110.) The court must also determine whether the PAGA settlement appears fundamentally fair, reasonable, and adequate. (*Ibid.*)

The court has carefully reviewed and considered the Stipulation of Class Action and PAGA Settlement and Release and plaintiff's moving papers filed in connection with the motion. The court determines a sufficient showing has been made that the class action settlement is fair, reasonable, genuine, meaningful, and adequate. The court also determines the settlement is fair, reasonable, genuine, and consistent with the purpose of PAGA.

For the purposes of the settlement, the court hereby certifies the class as defined on page 1, paragraph 1.8 of the Stipulation of Class Action and PAGA Settlement and Release. The court preliminarily approves the Stipulation of Class Action and PAGA Settlement and Release and Class Notice. The court approves the proposed form of the notice, and incorporates by reference the findings and orders outlined in the proposed order lodged with the court on April 22, 2026.

The final approval hearing is set for **Thursday, October 15, 2026, at 8:30 a.m. in Department 3.**

9. S-CV-0053818 PUGLIESE, JEREMY v. MORENO, FRANQUI

Defendant Franqui Antoinette Moreno's Demurrer to Plaintiffs' First Amended Complaint

Preliminary Matters

Defendant's requests for judicial notice are granted.

Ruling on Motion

Defendant demurs to plaintiffs' first amended complaint ("FAC") on the grounds res judicata bars the complaint. A demurrer tests the legal sufficiency of the pleading, not the truth of the plaintiff's allegations or accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleading are deemed to be true no matter how improbable the allegations may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, "[i]f the allegations in the complaint conflict with the exhibits, we rely on and accept as true the contents of the exhibits." (*SC Manufactured Homes,*